

Ramanand Vishwakarma v. Purvanchal Vidyut Vitran Nigam

High Court of Judicature at Allahabad · Division Bench · 6 February 2020 · Writ-C No. 2334 of 2020 · WRIT - C No. - 2334 of 2020 · **Writ disposed of; petitioner to appear before the Executive Engineer with objections; speaking final order directed; coercive recovery stayed eight weeks; liberty to appeal under Section 127.**

HEADNOTE

Writ seeking quashing of a Tehsildar recovery certificate founded on a provisional assessment was disposed of without examining the demand on merits. The consumer was directed to appear before the Executive Engineer with his objection and evidence; the assessing officer was to pass a speaking final order within four weeks; coercive action was stayed for eight weeks or until that disposal, whichever was earlier; and any remaining grievance was left to an appeal under Section 127 of the Electricity Act, 2003. Default in appearance would revive the demand.

FACTUAL SUMMARY

The petitioner, Ramanand Vishwakarma, challenged a recovery certificate dated 29 November 2019 issued by the Tehsildar, Saidpur, Ghazipur, founded on a provisional assessment dated 26 June 2019 of the Executive Engineer of Purvanchal Vidyut Vitran Nigam. He alleged that the respondents were taking coercive recovery steps without deciding his objection and without following the U.P. Electricity Supply Code, 2005. The Division Bench heard counsel for the petitioner and the electricity department and disposed of the writ with directions.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

provisional-assessment-final-order-then-s127-appeal

HOLDING

Where recovery is launched on a provisional assessment without a speaking final order on the consumer's objections, the High Court will not quash the demand on merits. It will direct the assessing officer to consider the objections and evidence and pass a reasoned final order, stay coercive recovery for a limited period, and relegate any remaining grievance to an appeal under Section 127 of the Electricity Act, 2003 against that final order. If the consumer fails to appear and file the objection on the date fixed, the demand stands revived. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing a speaking final order on the petitioner's objections to the provisional assessment, the Court disposed of the writ and left any remaining grievance to an appeal under Section 127 of the Electricity Act, 2003. ¶ 1

s127-appeal-lies-only-against-final-order-not-provisional-assessment The recovery rested on a provisional assessment dated 26 June 2019; the Court required the Executive Engineer to pass a final speaking order before the consumer could pursue the Section 127 appeal. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PROVISIONAL ASSESSMENT DATED 26.6.2019 AND THE RECOVERY CERTIFICATE DATED 29.11.2019

The Court did not decide whether the assessment or recovery complied with the U.P. Electricity Supply Code, 2005; it only directed a speaking final order and relegated any remaining grievance to Section 127. ¶ 1

